

ANF-7A

**APPLICATION FOR CLAIM OF TED REFUND / DUTY DRAWBACK / BRAND
RATE FIXATION**

(Please tick whichever is applicable)

(Application shall be filed online once the software is ready)

1.	IEC No	Branch Code:
2.	Applicant details: i. Name of the firm/company ii. Full address iii. Contact Number iv. E-mail address	
3.	Bank's details: i. Name of the Bank ii. Address of the Bank iii. IFSC code iv. Nature of account(SA/CA) v. A/c Number vi. Telephone / Fax No.	
4.	a. Excise Authority/GST Authority details: i. Excise/ GST Registration No ii. Address of the jurisdictional Excise/GST Authority iii. Contact details of Excise/GST Authority iv. Amount of excise duty paid during last year v. Product registered for manufacturing activities (Excise details to be given only in case of TED refund)	
	b. Jurisdictional Customs Authority details: i. Address of the jurisdictional Customs Authority ii. Contact details of Jurisdictional Customs Authority iii. Amount duty paid during last year iv. Product registered for manufacturing activities	
5.	Application for: i. Refund of Terminal Excise duty ii. Refund of Duty Drawback as per AIR iii. Fixation of brand rate for duty draw back	
6.	Application is made by: i. Supplier of goods	

	ii. Recipient of goods	
7.	Supply details: i. Description of goods ii. Category of supplies under Para 7.02 of FTP	

8.If application is for refund on TED

S. No	Invoice No	Date of Supply	Date of payment	Description of item(s) of supply	Quantity	Quantum of Refund of TED	Late cut(if any)	Net Claim

EBRC/Payment Certificate No	EBRC/ Payment certificate date	Realized value

(Provision to add multiple invoices)

9.If the application is for drawback as per AIR under drawback schedule:

S.No	Invoice No	Date of Supply	Date of payment	Description of item(s) of supply	Tariff No	FOR value	Net quantity of supplies	Drawback Rate

EBRC/Payment Certificate No	EBRC/ Payment certificate date	Realized value	Drawback cap per unit in Rs (if any)	Amount of DBK	Late cut if any	Net payable amount

(Provision to add multiple supply Invoices)

10.	If supplies are made as per Para 7.02 (a) of FTP i. Advance Authorisation No and date ii. ARO/Invalidation No and date	
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11	If supplies are made as per Para 7.02 (c) of FTP i. EPCG Authorisation No and date ii. ARO/Invalidation No and date	
12.	Whether claim is made within the prescribed time	
13.	If not, rate of late cut as per Para 9.02 of HBP	
14.	If claim for refund of TED is made by supplier: Whether CENVAT credit has been availed by recipient?	
15.	If claim for refund of TED is made by recipient: Whether CENVAT credit has been availed by him?	
16.	If claim for duty drawback is made by supplier: Whether CENVAT credit has been availed by him on excisable inputs	
17.	If claim for duty drawback is made by recipient of goods: Whether CENVAT credit has been availed by supplier of goods on excisable inputs?	
18.	In case of claim made against supply under Para-7.02(a) & (c) whether authorization number and date figure in the supply invoices/ARE etc	
19.	Whether the application is for fixation of brand rate:(Yes/No) Drawback rate under AIR not available AIR is less than 4/5 of actual duty paid. (Tick appropriate category)	
19.A	If answer to Col 19 is yes, Details of custom duties paid on inputs with relevant subheadings to be provided	
20.	If answer to Col. 19 is yes, Whether: DBK 1, DBK II, DBK IIA statement is given as per Appendix 7E	

21. Statement of Supplies (applicable for Brand rate fixation only)

[illegible]

EBRC No/Payment certificate details	EBRC Value/Payment certificate	Late cut (if any)	Final amount of Duty drawback claimed on inputs	Remarks

22.Statement of inputs/components used, either imported or imported materials procured locally (applicable for brand rate fixation only)

S. No	Description	Technical characteristics	S.No of product supplied as per 21 above	S.No in DBK-I statement	S.No in DBK II/ DBK II A statement as applicable	Bill of entry and date under which item is imported	If imported item is procured locally corresponding invoice details to be provided	Name of Customs House	ITC HS Code

Unit of Measurement	Qty imported under said Bill of entry	S.No of import item under said Bill of Entry	Assessable value of import item as per Bill of Entry	Assessable value of Qty used	Rate of Duty	Country from which item is imported	Name and full address of the supplier in case the foreign material/component is obtained locally

Total Customs duty paid	Total Customs duty paid on qty consumed	Late cut (if any)	Final amount of customs duty incidence claimed	Remarks

A separate work sheet as per DBK 1 statement, DBK form II, and II(A) and certificates attached thereto duly certified by Chief Executive/production in-charge shall be submitted, as given in the **APPENDIX-7E**

23. Check List of documents to be attached duly scanned or submitted in the physical form at counter:

1. (a) In case of supply of Excisable goods, Copy of Invoices or a statement of invoices duly signed by the jurisdictional Excise/GST Authorities, confirming duty payment attested by Excise/GST Authorities as per the procedure prescribed by CBEC in their circular 15/2008-Cus. dated 26.9.2008..

(b) In case of supply of non excisable goods, copies of system generated GST e-invoices and corresponding e-way bills. (However, where system generated e-invoices and corresponding e-way bills cannot be provided for reasons to be stated, Copy of invoices or a statement of invoices, duly certified by the GST authorities of supplier/recipient may be furnished. OR copy of Form A along with copy of Tax Invoice duly endorsed by recipient shall be considered as proof of deemed export supplies to EOU/STP/EHTP/BTP)

2. Self certified copy of B/Es (in case of fixation of brand rate of duty drawback only)
3. Proof of payment through e-BRC/Bank Realisation Certificate of Exports and Realization with details as per Appendix 2U or Payment Certificate issued by Project Authority in **APPENDIX-7D** in original, as the case may be.
4. Copy of PAC issued by the Project Authority in original as per **APPENDIX-7C** along with File No. where the original has been submitted.
5. Copy of contract if supplies were to Project Authority or copy of digitally signed ARO or Invalidation Letter as the case may be (if supply against ARO/Invalidation Letter issued against AA /DFIA/EPCG, as the case may be).
6. Non-availment of CENVAT credit certificate as per ANNEXURE-I, by the recipient of finished goods (in case claim is for TED).
7. A certificate by the supplier of goods as per ANNEXURE-II (in case claim is for drawback).
8. Declaration/disclaimer certificate from supplier, in case claim is filed by recipient of goods and from recipient of goods, if claim is filed by supplier of goods, as per ANNEXURE-III
9. Statement of supplies for Fixation of Drawback Rate as per **APPENDIX-7E**.

DECLARATION / UNDERTAKING

1. I/We hereby declare that the particulars and the statements made in this application are true and correct to the best of my /our knowledge and belief and nothing has been concealed or held there from. If found incorrect or false, it will render me / us liable for any penal action or other consequences as may be prescribed in law or otherwise warranted.
2. I/We undertake to abide by the provisions of F.T. (D&R) Act, the Rules and Orders framed there under, the FTP, HBP, SION and the ITC(HS) Classification of Export & Import Items.
3. I/we further declare that the claim made by me/us is not a matter of right and I/we shall immediately refund the amount of TED/drawback obtained by us in excess of any amount/rate which may be re-determined by concerned RA / DGFT/Government as a result of post verification/Audit objection or otherwise.
4. None of the Proprietor/Partners(s)/Director(s)/Karta/Trustee of the firm/company has come under the adverse notice of DGFT or is in the caution list of RBI.
5. None of the Proprietor/Partners(s)/Director(s)/Karta/Trustee of the firm/company, as the case may be, is/are a Proprietor/Partner(s)/Director(s)/Karta/Trustee in any other firm/Company which has come under the adverse notice of DGFT or is in the caution list of RBI, to the best of my knowledge.
6. I / We hereby declare that no export proceeds are outstanding beyond the prescribed period as laid down by RBI or such extended period for which AD/RBI permission has been obtained.
7. I/we further declare that the goods supplied are excisable goods but no CENVAT credit is availed/ available to the recipient of goods. (In case of items covered under schedule 4 of the central excise Act 1944).
8. I/we further declare that no CENVAT credit facility has been availed on inputs for which drawback claim is made.
9. I hereby certify that I am authorised to verify and sign this declaration as per Paragraph 11.06 of the FTP.

Signature of the Applicant

Name

Designation

Official Address

Telephone/Mobile No

Residential Address

Email Address

Place

Date

ANNEXURE-I

DECLARATION FOR CLAIMING BENEFIT OF TERMINAL EXCISE DUTY (TED) REFUND

It is certified that no CENVAT credit under the Excise/GST Rules has been availed by us, nor will be availed in future, on supply of these items as per the application.

Signature (Authorized Signatory):

Full Name: Designation:

Name of the company:

Telephone Number:

E-mail Address:

Fax No:

Note: To be given on the letter head of the recipient of goods.

ANNEXURE-II

DECLARATION FOR CLAIMING DEEMED EXPORT DRAWBACK

1. I, (Name & Designation)on behalf of M/s. (Name and address of the supplier) hereby certify that we have supplied the following goods to M/s (Name and address of the recipient):

S.No.	Inv. No. & date	Description of goods	Unit	Qty.	Value

2. We also certify that we have not been issued any Advance Authorization/Duty Free Import Authorization in respect of the aforesaid supply of goods and have not availed any benefit thereon.
3. The complete address of the Jurisdictional Assistant/Deputy Commissioner of the Excise/GST Division is given as follows:

Yours faithfully,

Signature (Authorized Signatory):

Full Name: Designation:

Name of the company:

Telephone Number:

Address:

Fax No:

Note: Declaration is to be given on letter head of the supplier. The Declaration furnished by the supplier to Office of the Development Commissioner or RA of DGFT should be in duplicate with complete address of the Jurisdictional Assistant/Deputy Commissioner of the Excise/GST Division. The Development Commissioner/RA of DGFT would forward the second copy of this Declaration, duly stamped, to the addressed Assistant /Deputy Commissioner of the Excise/GST Division for cross verification.

ANNEXURE-III

DISCLAIMER CERTIFICATE FOR NOT CLAIMING DEEMED EXPORT BENEFITS

We hereby declare that we have neither drawn nor will draw any benefit of deemed export on supply of goods as declared/to be declared in the application for claim of deemed export benefits and we have no objection if M/s..... (Name and address of the recipient/supplier, as the case may be) draws the deemed export benefits on such supply of goods as mentioned in the application.

(Either party will have to give disclaimer in favour of other for not claiming benefits of deemed export against supply of goods as declared in the Application for claim. The disclaimer is to be submitted on the letter head of the firm/company)

Yours faithfully,

Signature (Authorized Signatory)

Full Name

Designation

Name of the Company

Telephone Number

Address

Fax No.

ANNEXURE-IV

FORMAT OF CERTIFICATE TO BE ISSUED BY PUBLIC SECTOR OIL COMPANIES CERTIFYING AMOUNT OF TED PAID BY EOU / PROJECT ON PURCHASE OF HSD FROM THEIR DEPOTS:

I _____(name of authorized signatory of PSU Oil Company) hereby declare that we (name of the Company) have supplies HSD to M/s. _____(Name of EOU/Project) from our depot at----- _____as per details given below.

Description	Invoice No.	Invoice Date	Quantity	Value	Total Duty paid (with breakup of components)

Disclaimer Certificate:

We hereby certify that we are not claiming any deemed export benefits on the above supplies and we do not have any objection if _____(Name of EOU/Project) claims deemed export benefits.

(Authorized Signatory)

(With full name and Designation)